



Appeal Decision

Site visit made on 4 August 2026

by **SE Hughes BA (Hons) PGDip MA MRTPI**

an Inspector appointed by the Secretary of State

Decision date: 3 September 2026

Appeal Ref: 6005649

Mill House, Cryers Hill Road, Cryers Hill, Buckinghamshire HP15 6LL

- The appeal is made under section 78 of the Town and Country Planning Act 1990 (as amended) against a failure to give notice within the prescribed period of a decision on an application for planning permission.
 - The appeal is made by Zillie Hussain against Buckinghamshire Council.
 - The application Ref is PL/25/2357/FA.
 - The development proposed was originally described as “householder application for demolition of existing side extension and rear conservatory, construction of single storey rear and side extensions and associated external alterations including conversion of existing garage to incidental use as a gym”.
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Decision

1. The appeal is allowed and planning permission is granted for the demolition of existing side extension and rear conservatory, construction of single storey rear and side extensions and associated external alterations at Mill House, Cryers Hill, Buckinghamshire HP15 6LL in accordance with the terms of the application, Ref PL/25/2357/FA, subject to the following conditions:
 - 1) The development hereby permitted shall begin not later than 3 years from the date of this decision.
 - 2) The development hereby permitted shall be carried out in accordance with the following approved plans: 2518 A-02, 2518 A-04, 2518 A-06 and 2518 A-07.
 - 3) The materials to be used for the external surfaces, including walls, roofs, doors and windows shall be of the same colour, type and texture as those used in the existing building or as stipulated within the application, unless the Local Planning Authority otherwise first agrees in writing.
 - 4) Prior to first occupation of the development hereby permitted, one ecological feature comprising either a bird box, bat box or a bug hotel shall be installed within the site curtilage, in a position suitable for their intended purpose, and thereafter retained for the lifetime of the development.

Preliminary Matters

2. The description of development on the application form includes the conversion of existing garage to incidental use as a gym. During the application process the appellant requested to withdraw the garage conversion element from the planning application. As the Council acknowledge this in its appeal statement and confirm that it has omitted these works from its application assessment, I have determined the appeal on the same basis, discounting plan no. 2518 A-03 and removing the reference to the garage conversion from the description of development in my

decision above. As it is not development, I have also omitted the address of the property from the description of development in the banner heading and my decision above. For the same reason I have omitted the application type from my decision above.

3. The appeal relates to a planning application that was not determined by the Council within the prescribed period. The Council indicates that since the proposal would have a lesser volume compared to the existing extensions it would replace, the impact on the openness of the Green Belt compared to the existing situation would be minimal, therefore if it had issued a decision, it would have granted planning permission.
4. On 17 August 2026 the Government published the revised National Planning Policy Framework (the Framework). Whilst the format of the Framework is modified with the introduction of national decision-making policies alongside plan making policies, the policies pertinent to this appeal, including those relating to the extension and alteration of buildings in the Green Belt remain unchanged, except for their regrouping under policy GB7 and renumbering. Therefore, there is no need to invite further comments from the appellant or the Council on the revisions as they do not affect this appeal.

Main Issue

5. The main issue is whether or not the proposal would be inappropriate development in the Green Belt.

Reasons

6. Policy GB7 of the Framework identifies categories of development which are not inappropriate in the Green Belt and therefore should not be regarded as harmful to the Green Belt or be required to demonstrate very special circumstances. One such category is the extension or alteration of a building, provided that it does not result in a disproportionate increase in size compared to the 'original building'¹.
7. The Framework does not provide a definition of what would amount to a 'disproportionate' addition over and above the size of the original building.
8. Policy DM43 of the Wycombe District Local Plan (adopted August 2019) (WDLP) identifies the conditions where the extension or replacement of a dwelling is appropriate in the Green Belt. In cases where the original dwelling volume excluding outbuildings is between 240m³ and 720m³, it requires the total volume of the resulting building to be no more than the volume of the original building plus 50%. Whilst the WDLP predates the Framework by seven years, at the time that it was adopted the Framework's policy on extensions in the Green Belt was the same as it is today. Policy DM43 therefore provides detail as to how the size of a proposed extension should be assessed locally and is consistent with the Framework.
9. The appeal property is a detached, two storey dwelling with various extensions and alterations. This includes a side extension, a conservatory and a plant room constructed prior to the existence of Policy DM43.

¹ The original building for this purpose is the building that existed on 1 July 1948 or, if constructed after 1 July 1948, as it was built originally.

10. The parties disagree as to the precise volume of the original property and its previous extensions, over and above its original size.
11. The Council suggest that the original dwelling, which included an attached garage, had a volume of 607m³ and that its current extensions amount to 492m³, therefore they exceed the policy DM43 extension allowance by approximately 189.1m³. It estimates that the proposal would result in a decrease in the size of the original building by 32m³ (1099.6m³ [existing volume] –1067.1³ [proposed volume]).
12. The appellant presents two sets of figures. The first set described as a 'planning volumetric assessment' suggests that the original dwelling had a volume of 706.28m³ and that its current extensions amount to 591.19m³ (1297.47m³ existing volume). The second set of figures, based on a laser and photographic survey ('architectural volumetric assessment') suggest that the total volume of the original dwelling and its current extensions amount to 1155m³ and the building volume removed by the proposal would be 309.95m³ which would be replaced by an almost equivalent volume of 308.3m³.
13. Based on the evidence above and the plans before me, I am satisfied that the volume of the dwelling would not be larger as a result of the proposal. Furthermore, by replacing the elongated side extension and conservatory with more compact rear extensions, the appeal scheme would result in a dwelling which has a more consolidated, compact appearance overall, which would have less impact on the openness of the Green Belt than the dwelling presently. Therefore, whilst I am mindful of the technical conflict with Policy DM43 of the WDLP and the exceedance of the 50% allowance, as the Framework does not define 'disproportionate' additions, and since, in relative terms, the dwelling would not be larger volumetrically than the existing dwelling, I find that it would not result in disproportionate additions to the original building.
14. For the reason above, I therefore conclude that the proposal would not be inappropriate development in the Green Belt under the terms set out by the Framework.

Other Matter

15. As the site is located in the Chilterns National Landscape, formerly known as the Chilterns Area of Outstanding Natural Beauty, I am mindful of my duties to seek to further the purpose of conserving and enhancing the natural beauty of National Landscapes. Given the development would result in a more consolidated, compact dwelling within the property's large garden, there would be no impact on the wider landscape.

Conditions

16. A condition requiring compliance with the submitted plans is necessary for reasons of certainty. To safeguard the character and appearance of the property I have imposed a condition requiring the materials for the external surfaces of the proposal to match the building or accord with the details specified in the application and to enhance on-site biodiversity in order to satisfy the provisions of Policy DM34 of the WDLP a condition requiring the provision of one ecological feature is also needed.

Conclusion

17. The proposal conflicts with the development plan but material considerations indicate that a decision should be made other than in accordance with it. For the reasons given above, I conclude that the appeal should be allowed.

SE Hughes

INSPECTOR